CHAPTER 10 · DEEP DIVE · A HOUSE DIVIDED

The Enforcement Acts

When terror threatened to undo the vote, the federal government struck back — and, for a moment, won. 1870–1871.

Name: _____ **Period:** _____ **Date:** _____

When terror threatened to undo the vote, the federal government struck back — and, for a moment, won. 1870–1871.

How far should a national government go to protect its citizens' rights from violence inside its own borders?

Rights on Paper, Terror in Fact

THE CRISIS

By 1870 the Fourteenth and Fifteenth Amendments had guaranteed Black citizenship and the vote. But the Ku Klux Klan was making those guarantees meaningless through violence. The rights existed on paper; the terror existed in fact.

President Ulysses S. Grant and the Republican Congress decided the federal government had to act — directly.

Ulysses S. Grant

PRESIDENT, 1869–1877

The general who won the war now used the power of the presidency to defend the peace — making the protection of Black citizens' rights a federal responsibility.

President Ulysses S. Grant — photograph, public domain (Library of Congress).

The Laws

1870–71

Congress passed a series of Enforcement Acts, including the Ku Klux Klan Act of 1871. They made it a federal crime to use violence or conspiracy to deny citizens their rights — and empowered the president to use the army and even suspend habeas corpus to stop it.

This was a huge expansion of federal power. For the first time, Washington claimed the authority to prosecute private individuals who attacked citizens' civil rights.

Redemption, 1869–77 — map, © ShadowDog Digital Studios (SDS Digital Collection).

It Worked — For a While

THE EFFECT

Grant used the new laws aggressively. In parts of South Carolina he suspended habeas corpus and sent federal troops; the government arrested and prosecuted hundreds of Klansmen.

The effect was dramatic: by 1872 the Klan was largely broken. Black Southerners voted again in large numbers. It proved that federal power could protect rights — when the government chose to use it. The tragedy of the years ahead is that it would gradually choose not to.

ULYSSES S. GRANT, TO CONGRESS

There is no part of our country where … life, liberty, and property are not sufficiently protected, that … the strong arm of the Government [should not] be used.

Trace Cause and Effect

YOUR TURN

You'll follow how federal action broke the Klan, and practice cause and effect — including the harder question of what happened when that action stopped.